

Line 1

Case Name: *Chandra Bambah v. Google LLC d/b/a YouTube, et al.*

Case No.: 25CV475065

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Google LLC (“Google”) demurs to the First Amended Complaint (“FAC”) of Plaintiff Chandra Bambah (“Plaintiff”) on the grounds that the FAC fails to allege facts sufficient to state a cause of action under Code of Civil Procedure Section 430.10(e) and is barred by 47 U.S.C. § 230(c)(1) (“Section 230”). Notice of Demurrer (the “Demurrer”) at 6:4-9 (filed: June 22, 2026).

The Demurrer came on for hearing on September 4, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations & Background

Plaintiff Chandra Bambah is a retired documentary filmmaker and the father of a daughter he alleges was subjected to coercive practices at the Isha Foundation ashram in India. On October 5, 2024, Plaintiff created a YouTube channel titled “Sadhguru Inversed” and uploaded two videos totaling approximately six minutes. The first video was a recorded letter to the Chief Justice of India requesting additional time before an October 18, 2024, Supreme Court hearing concerning habeas corpus proceedings related to the Isha Foundation. The second video discussed the Isha Foundation’s alleged motives. (FAC ¶¶ 4, 9, 11, 18, 28)

At the time Plaintiff uploaded the videos, YouTube’s automated systems sent him a premiere confirmation email, which validated that no spam flag was triggered at upload. Between October 5 and October 10, 2024, the videos received fewer than ten total views. (FAC ¶¶ 11, 18, 19)

On October 10, 2024, YouTube permanently terminated Plaintiff’s channel, citing its “spam, deceptive practices and scams policy”. Plaintiff immediately appealed. Within two to three hours, YouTube denied the appeal, reconfirming that the channel violated the spam policy without identifying any specific content element as violating the policy. (FAC ¶¶ 11)

YouTube’s termination was driven by external pressure from the Isha Foundation, which has obtained court orders in India directing Google to remove content critical of the organization. Specifically, the Delhi High Court issued an ex parte injunction on March 12, 2025—approximately five months after Plaintiff’s channel was terminated—ordering

Google to remove a video titled “Sadhguru EXPOSED” and related content. Plaintiff contends that YouTube terminated his channel in anticipation of or response to similar pressure, not for legitimate content moderation reasons. (FAC ¶¶ 22-27)

Plaintiff initiated this action on September 15, 2025, and amended his complaint on May 5, 2026, alleging causes of action for (1) breach of contract, (2) negligent infliction of emotional distress, (3) violation of California Unfair Competition Law, (4) promissory estoppel, (5) intentional interference with prospective economic advantage, (6) civil conspiracy, and (7) declaratory relief. First Amended Complaint (“FAC”) at 23:4-38:26.

II. Legal Standard on Demurrer

“The party against whom complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] section 430.30, to the pleading on any one or more of the following grounds: . . . (e) The pleading does not state sufficient facts to constitute cause of action, (f) The pleading is uncertain.” (C.C.P. § 430.10(e) & (f).)

A demurrer may be used by “[t]he party against whom complaint has been filed” to object to the legal sufficiency of the pleading as whole, or to any “cause of action” stated therein, on one or more of the grounds enumerated by statute. (C.C.P. §§ 430.10 & 430.50(a).)

A demurrer tests the legal sufficiency of the factual allegations in a complaint.” (*Redfearn v. Trader Joe’s Co.* (2018) 20 Cal. App. 5th 989, 996.) The court must determine “whether the complaint alleges facts sufficient to state a cause of action or discloses a complete defense.” (*Ibid.*) The court assumes “the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken.” (*Ibid.*) Whether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer. (*Erlach v. Sierra Asset Servicing, LLC*, (2014) 226 Cal. App. 4th 1281, 1291.)

Courts “give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (*Goncharov v. Uber Techs., Inc.* (2018) 19 Cal. App. 5th 1157, 1165.) Courts “construe the complaint ‘liberally ... with a view to substantial justice between the parties[.]’” (*Ibid.*) “A demurrer must dispose of an entire cause of action to be sustained.” (*Fremont Indem. Co. v. Fremont Gen. Corp.* (2007) 148 Cal. App. 4th 97, 119.)

Under Code. Civ. Proc. § 430.10(f), a demurrer may also be sustained if a complaint is uncertain i.e., ambiguous and unintelligible. Demurrers for uncertainty are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures. (See, *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695; internal citation and quotes omitted.)

Even if a demurrer is sustained, leave to amend the complaint is routinely granted

under California law. “Liberality in permitting amendment is the rule, if fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal. App. 4th 1217, 1227.) “Unless the complaint shows on its face that it is incapable of amendment, denial of leave to amend constitutes an abuse of discretion, irrespective of whether leave to amend is requested or not.” (*McDonald v. Sup. Ct. (Flintkote Co.)* (1986) 180 Cal. App. 3d 297, 303-304.)

III. Analysis of the Demurrer

Defendant demurs to all seven causes of action alleged against it in the FAC on grounds that they are barred by 47 U.S.C. section 230, subdivision (c)(1) of the Communications Decency Act (“CDA”) and that Plaintiff fails to allege sufficient facts to constitute the causes of action. (Notice of Demurrer at 6:7-9)

Section 230 “immunizes providers of interactive computer services against liability arising from content created by third parties.” (*Liapes v. Facebook, Inc.* (2023) 95 Cal.App.5th 910, 928, quoting *Fair Housing Council of San Fernando Valley v. Roommates.com, LLC* (9th Cir. 2008) 521 F.3d 1157, 1162.) Under § 230(c)(1) of the CDA, a party is shielded from liability if the party is: “(1) a provider or user of an interactive computer service (2) whom a plaintiff seeks to treat, under a state law cause of action, as a publisher or speaker (3) of information provided by another information content provider.” (*Murphy v. Twitter, Inc.* (2021) 60 Cal. App. 5th 12, 24. quoting *Barnes v. Yahoo!, Inc.* (9th Cir. 2009) 570 F.3d 1096, 1100–1101.)

Here, all three elements required for Section 230(c)(1) immunity are satisfied.

First, Defendant is indisputably an interactive computer service provider. “Passively displaying content created entirely by third parties’ renders the operator only a service provider with respect to that content.” (*Wozniak v. YouTube, LLC*, (2024) 100 Cal. App. 5th 893, 909; internal citation and quotes omitted) Second, Plaintiff’s own allegations establish that he created and uploaded the videos at issue. Third, each of Plaintiff’s seven causes of action seeks to hold Defendant liable for its decision to remove Plaintiff’s videos—a quintessential publisher function. Put simply, Plaintiff seeks to adjudicate Defendant’s decision to remove his videos. However, this conduct i.e. Defendant’s refusal to allow certain content on its platform is typical publisher conduct protected by section 230 regardless of the reason for refusal.

California courts have consistently held that platform/service-provider decisions to publish, remove, alter content, or restrict access to third-party content constitute editorial functions protected by Section 230(c)(1). (See e.g., *Wozniak, supra*, 100 Cal. App. 5th at 908, 913 [“YouTube’s action amount to a publishing decision not to prevent or alter the videos”]; *Prager University v. Google, LLC* (2022) 85 Cal.App.5th 1022, 1032, [“lawsuits seeking to hold a service provider liable for its exercise of a publisher’s traditional editorial functions—such as deciding whether to publish, withdraw, postpone or alter content—are barred.”]; *Sikhs for Justice “SFJ”, Inc. v. Facebook, Inc.* (N.D.Cal. 2015) 144 F.Supp.3d 1088, 1095-1096; *Barrett v. Rosenthal* (2006) 40 Cal.4th 33, 43; *Fair Housing Council v. Roommates.com, LLC* (9th Cir. 2008) 521 F.3d 1157, 1170-1171 [“any activity

that can be boiled down to deciding whether to exclude material that third parties seek to post online is perforce immune under section 230”].)

Plaintiff alleges that Defendant breached express contractual obligations, breached the implied covenant of good faith and fair dealing, negligently inflicted emotional distress, engaged in unfair business practices, committed promissory estoppel, intentionally interfered with economic advantage, and conspired to suppress speech—all by permanently terminating his channel. In applying Section 230(c)(1) immunity, the Court does not consider the name or label of Plaintiff’s causes of action. Instead, “what matters is whether the cause of action inherently requires the court to treat the defendant as the ‘publisher or speaker’ of content provided by another.” (*Sikhs for Justice “SFJ,” supra*, 144 F. Supp. 3d at 1094.) Here, the Court finds that each of Plaintiff’s claims is predicated entirely on Defendant’s editorial decision to remove Plaintiff’s videos from its platform. This is precisely the type of publisher conduct that Section 230 immunizes.

Plaintiff attempts to avoid Section 230 immunity by characterizing Defendant’s conduct as its “own affirmative misconduct” rather than publisher activity. (Opposition at 8:12-15) This argument fails. The act that Defendant allegedly conducted is the removal of Plaintiff’s content, and removing content is something publishers do. Section 230 bars claims that seek to hold an interactive computer service liable as a publisher of third-party content, regardless of how artfully the plaintiff labels the claims.

Plaintiff’s reliance on *HomeAway.com, Inc. v. City of Santa Monica* (9th Cir. 2019) 918 F.3d 676, is misplaced. That case involved a municipal ordinance barring online platforms from completing booking transactions for unlicensed short-term rentals; platform liability turned on whether a transaction was completed, not on editorial decisions about what content to host. Here, by contrast, liability turns entirely on Defendant’s decision to remove Plaintiff’s videos - a core editorial function.

Plaintiff goes on to argue that section 230 is not a bar to his claims since Defendant acted in bad faith by removing his videos in response to external pressure from the Isha Foundation rather than for legitimate content moderation reasons. Plaintiff points to March 2025, and March 2026 court orders from India - directing Google to remove content critical of the organization – in support of his argument that Defendant removed his videos due to external pressure and not because they violated Defendant’s spam and deceptive practice policies. (Opposition at 8:20-10:2; FAC Exhibits D1, D2) But this argument not only conflates two distinct Section 230 provisions, but also fails for several reasons:

1. Section 230(c)(1) contains no good faith requirement. It asks only whether the claim requires treating the defendant as the publisher of information created by another. California courts have held that a platform’s motives for exercising editorial control are irrelevant to Section 230(c)(1) immunity. (See, e.g. *Sikhs for Justice “SFJ,” supra*, 144 F. Supp. 3d at 1095; *Riggs v. MySpace, Inc.* (9th Cir. 2011) 444 Fed. App’x. 986, 987.) Even assuming Defendant removed Plaintiff’s videos in response to pressure from the Isha Foundation (or in anticipation of such pressure), that does not strip Defendant’s Section 230(c)(1) immunity. The alleged

external influence may explain *why* Defendant exercised its editorial discretion in a particular way, but it does not transform the editorial decision itself into non-publisher conduct.

2. Section 230(c)(2), immunizes “any action voluntarily taken in good faith to restrict access to or availability of material that the provider or user considers to be . . . objectionable” (47 U.S.C. § 230(c)(2)(A).) The statute protects actions taken on the good faith belief that content is objectionable, a broad and subjective term that encompasses a wide range of platform judgments. Defendant identified a specific policy basis for the termination: its spam, deceptive practices, and scams policy. Whether or not Plaintiff’s videos actually violated that policy is beside the point for Section 230(c)(2)(A) purposes. The question is whether Defendant acted on a good faith belief that the content was objectionable, not whether a reviewing court would reach the same conclusion.
3. Pointing to the court orders from India paradoxically undermines Plaintiff’s bad faith theory. Defendant’s awareness of these orders and its potential legal exposure in India supports a finding of good faith under Section 230(c)(2)(A). Platforms routinely consider legal and regulatory risks when making content moderation decisions. Such considerations are part of the good faith exercise of editorial judgment that Section 230 was designed to protect. Plaintiff’s argument that the 2025 order did not justify Defendant’s action in October 2024, misses the point. The relevant inquiry under Section 230(c)(2)(A) is whether Defendant acted in good faith when it made the termination decision, not whether the termination was objectively compelled by law. If Defendant was aware in October 2024 that the Isha Foundation was pursuing (or threatening to pursue) legal action in India concerning similar content, a decision to remove Plaintiff’s videos to mitigate legal risk would be a good faith content moderation judgment, not bad faith suppression.

Plaintiff invokes *Enigma Software Grp. USA, LLC v. Malwarebytes, Inc.* (9th Cir. 2019) 946 F.3d 1040, for the proposition that bad faith allegations defeat Section 230 immunity at the pleading stage. (FAC ¶ 10, Opposition at 8:20-23) However, *Enigma* involved narrow circumstances—allegations that one commercial competitor configured its anti-malware product to flag a rival’s software as a security threat for anticompetitive reasons. The Ninth Circuit’s holding was expressly limited to that context: “blocking and filtering decisions . . . driven by anticompetitive animus are not entitled to immunity under section 230(c)(2)”. (*Id.* at 1050.) The court did not address Section 230(c)(1) at all and emphasized the narrow scope of its ruling.

Enigma does not apply here. Defendant is not Plaintiff’s competitor, and the theory is not that Plaintiff’s videos were blocked for anticompetitive purposes. Plaintiff’s attempt to extract a broad “bad faith” exception to Section 230(c)(1) from *Enigma*’s narrow holding finds no support in the decision itself or in subsequent California authority.

Moreover, because the Court has now found that all seven causes of action of the FAC are categorically barred by Section 230(c)(1), the Court perceives no reasonable

possibility whatsoever that Plaintiff could cure this fatal defect through amendment. Therefore, after carefully considering all the papers and the record and arguments of counsel and the standard for granting amendment under California law, and in the broad exercise of its discretion, the Court **SUSTAINS** Google's Demurrer to the First Amended Complaint **WITHOUT LEAVE TO AMEND**.

IV. Conclusion & Order

Accordingly, the Court **SUSTAINS** the Demurrer of Defendant Google LLC to the First Amended Complaint of Plaintiff Chandra Bambah **WITHOUT LEAVE TO AMEND** because all causes of action in the First Amended Complaint are barred by 47 U.S.C. Section 230(c)(1).

SO ORDERED.

Date: September 4, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 2

Case Name: *Lee Drone v. Peter D. Bear, et al.*

Case No.: 25CV480264

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Specially-Appearing Defendant Ian Goodman (“Defendant”) moves under code of Civil Procedure Section 418.10 to quash service of summons on the ground that this Court lacks personal jurisdiction over Defendant. Notice of Motion (the “Motion”) at 2:4-7 (filed: Jan. 27, 2026).

The Motion came on for hearing on September 4, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

On November 1, 2021, Plaintiff and Ian Goodman , as co-owners, purchased the real property located at 1430 Ellen Avenue, Madison, Wisconsin (“Wisconsin Property”). Dane County Title Company acted as the settlement agent for the transaction (Complaint ¶¶ 1, 2)

Some dispute arose between Plaintiff and Ian Goodman. As a result, Ian Goodman, through his attorney Peter Bear, sent various email communications to Plaintiff regarding their co-ownership agreement, offer to purchase Plaintiff’s share, Goodman’s petition for harassment injunction, and service of the restraining order. Peter Bear and Plaintiff exchanged email communications pertaining to the legal proceedings in Wisconsin, discovery, settlement terms and proposals. Some of the email communications contained production of Plaintiff’s loan application without redacting Plaintiff’s private information, and Goodman’s petition, which contained false statements. (Complaint ¶¶ 2-10, 26-107)

As a result of Defendants’ wrongful acts and communications, Plaintiff was unlawfully excluded from use and disposition of the Wisconsin Property; has incurred litigation costs, travel costs, loss of work time; has suffered reputational harm and emotional distress. (Complaint ¶¶ 197-198)

Plaintiff initiated this action on November 21, 2025, alleging 84 causes of action:

Count 1 - Negligent Mishandling of Property-Related Financial Records; Breach of custodial duty as settlement agent

Count 2- Negligent Misrepresentation; Failure to preserve accuracy in closing documentation